



CHAPTER vi.

An Act to authorise the Maidstone Gas Company to
convert their existing capital to raise additional capital
and for other purposes. A.D. 1903.
[30th June 1903.]

WHEREAS by an Act passed in the fourth year of the reign of King George the Fourth the Maidstone Gas Light and Coke Company were incorporated and authorised to supply gas within the limits defined in the Act :

And whereas the Maidstone Gas Light and Coke Company raised capital and established gasworks in Maidstone under the powers of the said Act :

And whereas by the Maidstone Gasworks Act 1858 (in this Act called “the Act of 1858”) the recited Act was repealed but the Maidstone Gas Light and Coke Company were continued incorporated under the name of the Maidstone Gas Company (in this Act called “the Company”) and with the Act of 1858 were incorporated the Companies Clauses Consolidation Act 1845 the Lands Clauses Consolidation Act 1845 and the Gasworks Clauses Act 1847 and subject to the provisions of those Acts the Company were empowered to make and supply gas within the limits of the Act of 1858 and to exercise the other powers and provisions of the said last-mentioned Act :

And whereas by the Maidstone Gas Act 1880 (in this Act called “the Act of 1880”) the then capital of the Company was as from the thirtieth day of June one thousand eight hundred and eighty converted into fifty-one thousand seven hundred and eighty-five pounds Maidstone Gas consolidated stock and subject as therein provided the dividend on such stock in any one year was not to exceed seven pounds in respect of every one hundred pounds of stock and the Company were authorised to raise further sums

A.D. 1903. — not exceeding in the whole fifty thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock and the Company were empowered to borrow in respect of such additional capital any sum not exceeding one-fourth part thereof and the Company were empowered to create and issue debenture stock accordingly at such rate of interest as they might think fit not exceeding five pounds per centum per annum :

And whereas by the Maidstone Gas Order 1896 (in this Act called “the Order of 1896”) confirmed by the Gas Orders Confirmation Act 1896 the borrowing powers conferred on the Company by the Act of 1880 save so far as the same had already been exercised and the power to create and issue debenture stock were repealed and the Company were authorised to raise by the creation and issue of debenture stock sums not exceeding in the aggregate such an amount as including premiums would be equal to one-third of the total amount received in respect of the share capital of the Company for the time being :

And whereas the capital of the Company authorised by and raised under the said recited Acts now consists of eighty-seven thousand six hundred pounds seven per centum consolidated stock the whole of which capital has been subscribed and fully paid up and the Company have borrowed by the creation and issue of three per centum debenture stock under the provisions of the Order of 1896 the sum of thirty-five thousand three hundred and seventy pounds :

And whereas the demand for gas within the Company’s limits of supply has increased and is increasing and it is expedient that additional capital should be provided for the improvement of plant and other purposes of the undertaking and that the Company’s limits of supply should be extended and that such further powers be conferred upon the Company as are hereinafter contained :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King’s most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Maidstone Gas Act 1903 and the Act of 1858 the Act of 1880 the Order of 1896 and this Act may be jointly cited as the Maidstone Gas Acts 1858 to 1903.

2. The following Acts and parts of Acts so far as the same are applicable for the purposes of and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act (that is to say):—

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Incorporation of general Acts.

The Gasworks Clauses Act 1847 :

The Gasworks Clauses Act 1871 :

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters:—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested :

And Part I. (relating to cancellation and surrender of shares)

Part II. (relating to additional capital) and Part III.

(relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

3. In this Act the words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Interpretation.

4.—(1) On the first day of July one thousand nine hundred and three the whole of the Company's seven per centum consolidated stock amounting to eighty-seven thousand six hundred pounds shall be converted into stock to be called "Five per centum capital stock" of the nominal amount of one hundred and twenty-two thousand six hundred and forty pounds and such stock shall be divided among the holders of the said seven per centum consolidated stock in the proportion of one hundred and forty pounds of five per centum capital stock for every one hundred pounds of seven per centum consolidated stock and so in proportion for any greater or less amount of seven per centum consolidated stock

Existing seven per centum stock converted into five per centum stock.

A.D. 1903. The five per centum capital stock shall as from the said first day of July one thousand nine hundred and three be entitled to a uniform dividend of five pounds per centum per annum.

(2) On the said first day of July there shall be by virtue of this Act created such a nominal amount of such five per centum capital stock of the Company as shall be necessary to give effect to the provisions of this section and the amounts of stock to which the holders of seven per centum consolidated stock become by virtue of this Act respectively entitled in substitution for such last mentioned stock shall be vested in such holders on the said first day of July and shall be forthwith registered in their respective names in the books of the Company.

(3) All persons in whom any such capital stock shall be so vested shall stand possessed thereof upon the like trusts and subject to the like powers provisions declarations agreements charges liens and incumbrances upon or to which the stock in respect of which such capital stock is so vested were at the first day of July one thousand nine hundred and three subject and every deed or other instrument and every will or testamentary disposition of or affecting or purporting to effect or deal with the said existing stock shall take effect with reference to the whole or a proportionate part as the case may be of the capital stock substituted therefor.

(4) In every case where under the provisions of this Act a holder of existing stock would be entitled to any fractional part of a pound of capital stock created by virtue of this section the Company shall not be bound to register such fractional part of a pound of stock but may at the option of the Company pay to such holder such a sum in cash as shall be equal to the market value of such fractional part or receive from such holder such a sum in cash as will make up the amount of stock to be vested in him to an integral number of pounds and the amount of capital stock vesting in such holder shall thereupon be reduced or increased accordingly and the directors may raise the money necessary to enable the Company to make such cash payment as aforesaid by the issue and sale from time to time of such an amount of capital stock as may be requisite in that behalf.

Holders of stock to have same rights as they have in regard to existing capital.

5. The holders of the Company's seven per centum consolidated stock shall (subject to the provisions of this Act) respectively be and continue entitled and subject to all their existing rights and liabilities as holders of existing capital except that on and after the first day of July one thousand nine hundred and three they shall cease to be entitled to any dividends other than the dividends

provided for by this Act and that on and after the said date A.D. 1903.
 they shall be entitled to be and be holders of their proper
 proportions of capital stock created by virtue of this Act.

6. The Company shall call in the certificates of stock for which capital stock is substituted by this Act and shall issue in exchange for those certificates to the respective proprietors thereof free of charge certificates of capital stock of the respective amounts to which those proprietors are by this Act respectively entitled but no shareholder shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the existing certificate for which such certificate is to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof. Provided that until the issue of such new certificates the holders of the existing certificates shall (according to the amounts of capital stock to be substituted by virtue of this Act for the existing stock which they respectively represent) have and possess the same rights and advantages as if such existing certificates were certificates for those respective amounts of capital stock created by virtue of this Act but if any such holder neglect or omit to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address of such holder appearing in the books of the Company the Company may suspend the payment of any dividend declared or made payable upon or in respect of the capital stock so held by him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the directors of the Company to have been lost or destroyed.

Certificates
of stock to
be called in
and others
issued.

7. All transfers or other dispositions of any stock in the capital of the Company as existing up to the conversion thereof into capital stock by this Act shall after such conversion and notwithstanding this Act be valid and have due effect given to them respectively as transfers or dispositions of the respective amounts of capital stock created by virtue of this Act which represent the stock thereby expressed to be transferred or disposed of and which are substituted for the same by this Act although the instrument transferring or disposing of the same shall describe the same by the name or denomination which the stock transferred or disposed of had before such conversion and the bequest of or any covenant or provision of any deed or agreement relating to any specific nominal amount of any such existing stock converted by this Act into stock of larger nominal amount shall be held to

Transfers
of stock
although by
present name
to be valid.

A.D. 1903. — apply to a nominal amount of capital stock equal to that into which such existing stock shall have been converted by this Act.

Multiples of stock.

8.—(1) Any transfer of capital stock may be made in amounts of five pounds or in multiples of five pounds so long as thereby no holding of any stockholder of the Company is less than ten pounds of stock.

(2) Notice of the effect of this enactment shall be stated in all stock certificates.

Power to Company to raise additional capital.

9. The Company may raise additional capital not exceeding in the whole the sum of seventy-five thousand pounds by the creation and issue of five per centum capital stock but no such stock shall vest in the person accepting the same unless and until the full price of such stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital stock than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of seventy-five thousand pounds.

Amount of insurance fund.

10. Notwithstanding the increase in the capital of the Company authorised by this Act the insurance fund provided for by section 17 of the Act of 1880 shall not at any time exceed the sum of five thousand pounds.

Limit of dividends on ordinary stock.

11. The profits of the Company to be divided among the holders of capital stock in any year shall not exceed the rate of five pounds per annum in respect of every one hundred pounds of such stock and such rate is in this Act referred to as “the standard rate of dividend.”

New stock to be offered by auction or tender.

12. Notwithstanding anything in this Act contained the Company shall when any stock forming part of the additional capital authorised by this Act is to be issued and before offering the same to the holder of any stock in the Company and whether the capital stock of the Company is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale not inconsistent with the provisions of this Act as the directors of the Company shall from time to time determine. Provided that—

(1) At any such sale no single lot shall comprise more than one hundred pounds nominal value of stock:

(2) Notice of the amount of the reserved price put upon such stock shall be sent by the Company in a sealed letter to the

Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner :

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- (3) No priority of tender shall be allowed to any holder of stock in the Company except that if any bid or offer by tender of any such holder be the same in amount as any bid or offer made by any other person the bid or offer of such holder may be accepted in preference and preference may in like manner be given to any employee of the Company or any consumer of gas supplied by the Company whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of stock in the Company.

13. It shall be one of the conditions of any sale of stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Purchase money to be paid within three months.

14. The intention to sell any such stock by auction or by tender shall be communicated in writing to the town clerk of Maidstone to the clerks to the district councils for every district wholly or partly included in the Company's limits for the supply of gas and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within such limits.

Notice to be given as to sale of stock.

15.—(1) When any stock created under the powers of this Act has been offered for sale by auction or tender and not sold the same may (if the directors of the Company think fit) be offered at the reserved price put upon the same for the purpose of sale by auction or tender to the holders of capital stock of the Company in manner provided by the Companies Clauses Act 1863 or to the employees of the Company or to the consumers of gas supplied by the Company or partly to one and partly to another or others.

Stock not sold may be offered to shareholders employees or consumers.

(2) Any stock not so offered and any stock so offered and not accepted in the case of stock offered to the holders of capital stock within the time prescribed by the said Act or in the case of stock offered to such employees or consumers within the time limited by the directors of the Company may again be offered for sale by

A.D. 1903. — public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of stock created under the powers of this Act and at such time or times as the directors of the Company may think fit and any stock not then sold may be again offered to the holders of capital stock or to such employees or consumers at the reserved price put upon the same at such second auction or tender and so from time to time until the whole of such stock is sold.

Application
of premium
arising on
issue of stock.

16. Any sum of money which shall arise from the issue of any such stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend.

Power to
borrow.

17. The Company may at any time and from time to time after the thirtieth day of June one thousand nine hundred and three borrow on mortgage of the undertaking any sum or sums sufficient to produce an amount in cash not exceeding in the whole (inclusive of the sum of thirty-five thousand three hundred and seventy pounds already raised by the issue of debenture stock in pursuance of the Order of 1896) one-third part of the amount of the money received in respect of the capital authorised to be raised and at the time actually issued by stock but no part thereof shall be borrowed until the whole of the stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under section 40 of the Companies Clauses Consolidation Act 1845 before he so certifies that such stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Debenture
stock.

18.—(1) The Company may create and issue debenture stock subject to the provisions of the Order of 1896 except that the provisions of this Act with respect to disposing of stock by offer auction or tender shall apply *mutatis mutandis* not only to the additional capital stock of the Company but also to any debenture stock to be created by the Company under this Act.

(2) Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock granted or issued after the passing of this Act. A.D. 1903.

19. All money raised or to be raised by the Company on mortgage or by debenture stock under the provisions of the Act of 1880 and the Order of 1896 or of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rent-charge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividends on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of their undertaking or works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Company.

Priority of mortgages and debenture stock over other debts.

20. If any money is payable to a stockholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Receipt in case of persons not *sui juris*.

21. All money raised under this Act by the Company whether by stock debenture stock or borrowing shall be applied only to the general purposes of the Company being in all cases purposes to which capital is properly applicable.

Application of money.

22.—(1) On and after the first day of July one thousand nine hundred and three the prescribed illuminating power of the gas supplied by the Company shall be fourteen candles.

Illuminating power.

(2) In making tests for illuminating power the gas shall be burned at such rate as to yield the maximum light for which the burner for the time being used in making such tests shall be designed and the burner shall be Sugg's fourteen candle standard argand burner instead of the argand burner prescribed by section 42 of the Act of 1880.

23. The Company shall at any time within two years after the first day of July one thousand nine hundred and three if and when required by the consumers of the gas supplied by the Company other than consumers by slot-meters supply to them and fix free of

Company to supply suitable burners gratis in lieu of those in use.

A.D. 1903. — charge a sufficient number of burners suitable in all respects for the consumption of gas of the illuminating power prescribed by this Act The Company shall also so soon as reasonably practicable after the said first day of July one thousand nine hundred and three and at the latest within the period of twelve months thereafter exchange the burners used by consumers of gas supplied by the Company by means of slot meters for burners similarly suitable for the consumption of gas of the illuminating power prescribed by this Act Notice of the provisions of this section shall be given on each demand note sent out during the said period.

Alteration
of standard
price.

24. Section 16 (Price of gas) of the Act of 1880 is hereby repealed as from the first day of July one thousand nine hundred and three but without prejudice to the recovery of any moneys then due to the Company in respect of a supply of gas or to any existing contracts or agreements with respect thereto and from and after that date the standard price to be charged by the Company for gas supplied by them to consumers who shall burn the same by meter within the borough of Maidstone and outside the boundary of the borough but within a radius of one mile and a half from the town hall Maidstone shall be three shillings and sevenpence per thousand cubic feet and the standard price to be charged by the Company for gas supplied to consumers who shall burn the same by meter outside such radius shall be four shillings and fourpence per thousand cubic feet :

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard prices subject to a reduction or increase in the dividend payable by the Company on the capital stock as follows In respect of any half year during any part of which the price charged by the Company within the borough of Maidstone and a radius of one mile and a half from the town hall of Maidstone shall have been increased one penny or part of a penny above the standard price of three shillings and sevenpence or the price charged by the Company elsewhere within their limits for the supply of gas shall have been increased one penny or part of a penny above the standard price of four shillings and fourpence the dividend payable by the Company shall in respect of each penny or part of a penny by which either of the standard prices shall have been increased be reduced below the standard rate of dividend by one shilling and ninepence on every one hundred pounds of capital stock and so in proportion for any fraction of one hundred pounds And in respect of any half year during the whole of which the price charged by the Company within the borough of

Maidstone and a radius of one mile and a half from the town hall of Maidstone shall have been reduced one penny or more below the standard price of three shillings and sevenpence and the price charged by the Company elsewhere within their limits for the supply of gas shall also have been reduced one penny or more below the standard price of four shillings and fourpence the dividend payable by the Company may in respect of each penny by which the standard prices shall have been reduced be increased above the standard rate of dividend by one shilling and ninepence on every one hundred pounds of capital stock and so in proportion for any fraction of one hundred pounds.

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25. Section 30 of the Act of 1880 is hereby repealed and the qualification of a director from and after the passing of this Act shall be the possession in his own right of not less than four hundred pounds in the paid-up capital stock in the Company's undertaking.

Altering
qualification
of directors.

26. Section 5 of the Act of 1858 is as from the date of the passing of this Act repealed and the limits of the Company shall comprise and include the whole of the borough of Maidstone the parishes of Boxley Tovil Loose Barming Leeds Burham and Hollingbourne all in the county of Kent and also all other parishes and parts of parishes and extra parochial and other places within a distance of four miles from the town hall in Maidstone aforesaid except only such parts of the parishes of East Malling Ditton and Teston as are within the said distance of four miles from the town hall aforesaid.

Limits of
Act.

27. For the protection of the South Eastern Railway Company the London Chatham and Dover Railway Company and the South Eastern and Chatham Railway Companies Managing Committee (hereinafter respectively referred to as "the railway company") the following provisions shall (unless otherwise agreed) apply and have effect in the portion of the limits of supply of the Company outside the limits of the Act of 1858 (that is to say):—

For protec-
tion of South
Eastern and
London
Chatham and
Dover Rail-
way Com-
panies.

- (A) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes or other works upon across over under or adjoining or in any way affecting the railways lands and property now or hereafter belonging to or used or occupied by the railway company or the bridges approaches viaducts stations or other works or any level crossing over the railways of the railway company the same shall be done under the superintendence and to

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the reasonable satisfaction of the principal engineer of the railway company and only according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by such engineer in writing :

- (B) All such works shall be done by and at the expense of the Company (except as in this section otherwise provided) who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the railway company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Company. Provided always that should the railway company elect so to do where any mains or pipes require to be laid under or across any level crossing of their railway they may themselves lay the same at the costs charges and expenses of the Company :
- (c) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways bridges level crossings approaches viaducts stations works lands or property and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon :
- (D) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the bursting leakage or failure of any such mains pipes or works in under or near to any railway bridge level crossing embankment cutting approach viaduct station lands works or property of the railway company the Company shall make compensation to the railway company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided :
- (E) Any additional expense which the railway company may reasonably and properly incur in widening or altering their railway or works by reason of the existence of any mains or pipes of the Company across or under the same shall be paid by the Company :
- (F) Any dispute or difference which may arise between the railway company and the Company with reference to the provisions of this section or in any way arising thereout or

as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the railway company and the Company or either of them.

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28. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

As to construction and placing of pipes &c. between mains and meters.

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating in the borough of Maidstone and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes with their fittings and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with
- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty

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sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Company
may contract
for supply in
bulk.

29. The Company may contract with any local authority company or person within or beyond the limits of the Company (but only where such supply is to be given beyond the limits of the Company with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon :

Provided that the Company shall not supply gas under any such contract as aforesaid beyond the limits of the Company if and so long as such supply will interfere with the supply of gas within those limits.

Power to
purchase
lands by
agreement.

30. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands now belonging to them any lands and hereditaments not exceeding in the whole ten acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the First Schedule to the Act of 1880.

Restriction
on taking
houses of
labouring
class.

31.—(1) The Company shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(2) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and

shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the court may if it think fit reduce such penalty. A.D. 1903.
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(3) For the purposes of this section—

The expression “house” means any house or part of a house occupied as a separate dwelling; and

The expression “labouring class” means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

32. The Company may upon the application of the owner or occupier of any premises within the Company’s limits for the supply of gas abutting on or being erected in any street laid out or made but not dedicated to public use supply such premises with gas and may lay down take up alter relay repair or renew in across or along or out of such street such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof. Power to lay
pipes in
streets not
dedicated to
public use.

33. Any fittings let for hire under the provisions of section 35 (Power to supply gas apparatus engines stoves &c. for warming or cooking &c.) of the Act of 1880 shall not be subject to distress or to the landlord’s remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof. Fittings not
to be subject
to distress.

34. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Company may cease to supply him with gas. The Company shall have access to and be at liberty to take off remove test inspect Anti-fluc-
tuators for
gas engines.

A.D. 1903. — and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

No penalty
in case of
unavoidable
cause.

35. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of the recited Acts and of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Company Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

Dwelling-
houses for
persons in
Company's
employ.

36. The Company may purchase or take on lease dwelling-houses for persons in their employ and may erect and maintain dwelling-houses for such persons upon the lands for the time being belonging to or leased by the Company.

Expenses of
Act.

37. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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